

All correspondence to:

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**



OPEN NOTICE

PROCEDURAL POSITION — REQUEST FOR REASONS AND CONTEMPORANEOUS MINISTERIAL DECISION RECORD

Lal Lal Wind Farm — Planning Permit PL-SP/05/0461

Ministerial amendment decision dated 15 May 2026

To:

The Hon Sonya Kilkenny MP
Minister for Planning

By email: reception.kilkenny@transport.vic.gov.au

From:

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

Date: 9 September 2026

1. Purpose of this Notice

The Trustee writes concerning the Ministerial decision made on 15 May 2026 to amend Planning Permit PL-SP/05/0461 in relation to the Lal Lal Wind Farm.

The final Permit records that the amendment was made pursuant to section 97J of the Planning and Environment Act 1987 (Vic).

This Notice follows a substantial and documented course of correspondence directed to the Department of Transport and Planning and subsequently to the Minister concerning:

- the administrative and documentary basis of the amended Permit;
- the relationship between the publicly exhibited amendment and the Permit ultimately issued;
- the introduction and intended operation of Condition 27A;
- the change recorded in the Responsible Authority position;
- other differences between the exhibited material and final permit instrument;
- the Department's previously communicated reliance upon post-construction acoustic assessments as demonstrating compliance with NZS 6808:2010; and

- the documentary basis upon which relevant requirements of Condition 23 and the associated noise-compliance framework were regarded as having been demonstrated or satisfied.

Those matters remain substantively unanswered.

The Trustee has until now sought administrative clarification rather than prematurely invoke court processes.

The position has now materially developed.

Having regard to the continuing absence of substantive reasons or administrative reconciliation, the documentary record subsequently obtained or identified, and the procedural significance of the contemporaneous Ministerial decision record, the Trustee is now obtaining advice and considering the availability of judicial review of the Minister's decision of 15 May 2026, including whether an application for extension of time under rule 56.02 of the Supreme Court (General Civil Procedure) Rules 2025 (Vic) is available.

This Notice is issued before the Trustee determines whether any application to the Supreme Court of Victoria is necessary or appropriate.

It should not be understood as asserting that:

- the decision of 15 May 2026 is invalid;
- any particular ground of judicial review has been established;
- the Trustee is presently commencing proceedings; or
- an extension of time or substantive relief would necessarily be granted.

Its immediate purpose is narrower: to obtain the reasons for the decision, identify the contemporaneous Ministerial decision record, and provide a final opportunity for the outstanding administrative matters to be substantively addressed before the Trustee determines its next procedural step.

2. Trustee participation before determination

The matters now requiring clarification did not first arise after the decision.

The Trustee participated directly in the amendment process and, on 25 February 2026, made a formal submission concerning the proposed amendment.

Among other matters, that submission addressed the proposed transition from the existing planning-permit noise-compliance framework, including the proposed deletion of Conditions 24–27, and sought clarification concerning the status and satisfaction of existing permit requirements before their proposed removal.

Further documentary material was subsequently placed before DTP during March and April 2026.

On 7 April 2026, the Trustee wrote directly to the Minister concerning the Department's previously communicated position that post-construction noise assessments submitted by the project proponent demonstrated compliance with NZS 6808:2010.

The Trustee asked, in light of the additional documentary material forming part of the administrative record, whether that position continued to be maintained or whether the additional record gave rise to matters requiring further consideration.

The Trustee also raised outstanding matters concerning the commissioning milestone relied upon in regulatory correspondence and the administrative status of relevant planning-permit requirements.

The Trustee therefore had an existing and documented interest in the subject matter of the amendment before the decision of 15 May 2026 was made.

3. Determination of 15 May 2026

At approximately 4:57 pm on 15 May 2026, DTP notified the Trustee that a determination had been issued and supplied the final amended permit and associated determination material. The contemporaneous notification expressly advised that the determination had been issued.

The final Permit materially differed in identified respects from the amendment material previously placed on public exhibition.

Those matters included the insertion of Condition 27A, the Responsible Authority wording and other aspects of the final permit instrument that the Trustee considered required administrative reconciliation with the publicly exhibited proposal and the pre-existing record.

The Trustee did not conclude merely from those differences that the amendment was unlawful or invalid.

Instead, it sought an explanation.

4. Immediate post-decision request — 18 May 2026

On 18 May 2026, only three days after notification of the determination, the Trustee issued to DTP its formal:

NOTICE — REQUEST FOR ADMINISTRATIVE CLARIFICATION AND RECONCILIATION

That Notice addressed the relationship between the publicly exhibited amendment material, the amendment ultimately issued and DTP's associated administrative record.

The matters raised included:

- Condition 27A;
- its relationship with the existing Noise Management Plan;
- the Responsible Authority position;
- the meteorological-monitoring wording; and
- whether DTP had prepared a tracked comparison, assessment memorandum, delegate brief or other material explaining the differences between the exhibited proposal and the final permit.

The Notice was accompanied by relevant earlier correspondence and the Noise Management Plan dated 18 October 2022.

The Trustee deliberately did not at that stage advance a concluded allegation concerning validity, legal effect or compliance.

It sought the Department's own administrative explanation and record.

5. Subsequent unanswered correspondence

The Trustee followed up the 18 May Notice on 26 May 2026, seeking only updated status information or an indicative timeframe.

On 26 June 2026, more than one month after the original Notice, the Trustee recorded that neither acknowledgment nor substantive response had been received.

The Trustee expressly stated on 26 June that the purpose of its correspondence was confined at that time to administrative clarification and that it was not then seeking enforcement action, review of the Department's decision or another administrative outcome.

The Trustee does not seek to qualify or rewrite that contemporaneous position.

It was the position at that time.

Rather than initiate proceedings without the requested explanation, the Trustee had elected to seek clarification of the decision and associated administrative record.

That clarification was not provided.

6. Direct request to the Minister — August 2026

On 10 August 2026, the Trustee again wrote directly to the Minister.

That correspondence brought together the outstanding administrative issues and focused particularly upon Condition 23(a) and the documentary basis of the Ministerial and Departmental reliance position.

The Trustee expressly sought clarification as to:

1. how the Minister or Department was satisfied that compliance with Condition 23(a), according to its terms, had been demonstrated in accordance with NZS 6808:2010;
2. what documentary material formed the basis of that satisfaction; and
3. whether any instrument, approval, determination, technical advice or other documentary basis had been relied upon as permitting relevant assessments to depart from locations, definitions or methodology otherwise required by NZS 6808:2010 or the endorsed Noise Compliance Testing Plan.

The correspondence expressly stated that the Trustee was not asking the Minister to determine a private technical dispute or to predetermine breach, enforcement or legal effect.

The request was directed to the administrative basis of the Ministerial and Departmental reliance position.

The Trustee requested either a substantive response or identification of the appropriate Departmental officer or decision-maker authorised to provide one.

A 14-day period was afforded.

On 18 August 2026, having received no acknowledgment, the Trustee again contacted the Minister and requested confirmation that the correspondence had been received and referred for appropriate consideration.

The Trustee also re-supplied the 7 April and 18 May Notices so that the chronology and outstanding matters were readily identifiable as part of the administrative record.

The 14-day period expired on 24 August 2026 without substantive response.

7. Administrative Law Act 1978 — reasons position

The Trustee has now considered the potential significance of section 8 of the Administrative Law Act 1978 (Vic).

Section 8 provides, subject to its statutory application, for a person affected by a decision to request from a tribunal a statement of reasons for a decision.

The Act also contains statutory definitions of “decision”, “person affected” and “tribunal”.

The Trustee recognises that whether section 8 applies to the particular exercise of Ministerial power involved here requires consideration of those statutory definitions and, in particular, the character of the decision-making function in question.

The Trustee therefore does not presently assert as a concluded proposition that section 8 necessarily applies to the Minister's 15 May 2026 decision.

There is, however, a separate and important timing issue.

Section 8(2) provides, in substance, that a request falling within the section must be made either before the giving or notification of the decision or within 30 days after the decision came to the knowledge of the person making the request, and in any event not later than 90 days after the giving or notification of the decision.

The Trustee's 18 May 2026 Notice was issued three days after notification of the decision.

The Trustee is therefore obtaining advice concerning whether, having regard to its substance rather than merely its title, that contemporaneous request — including its requests for explanation of the final decision, the administrative basis for identified differences, and any assessment memorandum, delegate brief or equivalent material — engaged or otherwise has legal significance under section 8.

Section 8(3) provides that a statement of reasons required under the section is to be in writing and furnished within a reasonable time.

Section 8(4) provides for an application to the Supreme Court, in the circumstances specified in that subsection, for an order requiring the furnishing of a statement or further statement of reasons.

The Trustee does not purport through this Notice retrospectively to create a statutory request within a period that has expired.

Equally, the Trustee does not concede that its 18 May 2026 correspondence was incapable of constituting or including a request having legal effect under section 8.

That position is expressly preserved.

For the avoidance of unnecessary dispute on that issue, however, the Trustee now requests the Minister to provide reasons and identify the decision record whether or not section 8 is ultimately determined to apply.

8. Judicial review — Order 56

The Trustee is also considering the availability of judicial review under Order 56 of the Supreme Court (General Civil Procedure) Rules 2025 (Vic).

Rule 56.02 provides that a proceeding under Order 56 is ordinarily to be commenced within 60 days after the date when the grounds for the relief or remedy first arose.

Where the relief or remedy sought is in respect of a judgment, order, conviction, decision or determination, rule 56.02 provides for the relevant grounds to be taken to have first arisen on the date of that judgment, order, conviction, decision or determination.

The Trustee recognises that the ordinary 60-day period in respect of the 15 May 2026 decision has expired.

The Trustee further recognises that rule 56.02 provides that the Supreme Court shall not extend that period except in special circumstances.

The Trustee therefore makes no assumption that an extension will be available.

If an application is ultimately considered necessary, the question whether special circumstances exist will be for the Supreme Court.

The Trustee is presently considering the significance of the complete chronology, including:

- its participation in the amendment process before determination;
- the formal submission and documentary material provided before 15 May 2026;
- the request for clarification issued three days after notification of the decision;
- the unanswered 26 May and 26 June correspondence;
- the further direct request to the Minister on 10 August 2026;
- the subsequent acknowledgment request and re-supply of the earlier Notices on 18 August 2026;
- the continuing absence of substantive reasons or administrative reconciliation; and
- the subsequent identification of material highlighting the potential importance of the contemporaneous Ministerial decision record.

Nothing in this Notice asks the Minister to determine whether those matters amount to special circumstances.

That is a judicial question if it arises.

The present significance is that further unnecessary delay is no longer procedurally neutral from the Trustee's perspective.

9. Subsequently identified Ministerial decision-record material

The Trustee has subsequently become aware of publicly available material associated with a Supreme Court proceeding concerning a separate decision of the Minister for Planning relating to the Mt Fyans Wind Farm.

The Trustee does not suggest that the facts, statutory issues or grounds advanced in that proceeding are equivalent to those concerning Lal Lal Wind Farm.

Nor does the Trustee treat allegations made in that proceeding as established findings.

The relevance is narrower.

Material filed in that proceeding identifies, in relation to the separate Ministerial decision there in issue, a Ministerial Brief and associated departmental and technical assessment material as having been before the Minister.

That does not establish that an identical documentary process was followed in respect of Lal Lal Wind Farm.

It has, however, brought into sharper focus the significance of identifying what material was in fact before the Minister when the decision of 15 May 2026 was made, particularly where the Trustee had made a formal submission and had already placed substantial documentary material before DTP and/or the Minister.

The Trustee considers it reasonable that this question now be answered directly rather than inferred from an incomplete administrative record.

10. Continuing practical context

The administrative issues addressed in this Notice do not arise in an abstract or purely historical setting.

The Trustee has continued to record reported operational impacts affecting the relevant dwelling during the period in which the outstanding administrative questions have remained unresolved.

Those reported circumstances have been addressed separately from the question of the validity or administrative basis of the Minister's decision.

The Trustee has attempted to identify practical means by which the continuing circumstances might be addressed without awaiting the conclusion of regulatory, administrative or legal processes.

That has included affording LLWF opportunities to consider:

- substantive commercial resolution; and
- voluntary, reversible interim operational curtailment directed toward reducing continuing reported impacts.

Most recently, on 30 August 2026, the Trustee afforded LLWF a defined opportunity to consider voluntary interim operational curtailment while expressly preserving the separate availability of commercial resolution should LLWF itself elect to pursue that course.

That opportunity concluded on 7 September 2026 without substantive engagement with the proposed interim operational measure.

The Trustee has not extended or restarted that opportunity and has not advanced a further commercial position.

The Trustee does not rely upon LLWF's response, or absence of response, as:

- establishing planning-permit non-compliance;
- establishing invalidity of the Minister's decision;
- establishing any ground of judicial review; or
- creating any obligation upon the Minister to intervene in a private commercial matter.

Nor does the Trustee ask through this Notice that the Minister or Department procure, facilitate or require a commercial resolution.

The narrower relevance is that the Trustee has, while continuing to seek administrative answers, also attempted to identify proportionate alternatives by which the reported practical circumstances might be mitigated without litigation.

Those avenues have not presently produced either substantive resolution or interim operational mitigation.

Against that continuing factual background, the Trustee does not consider it appropriate simply to leave the outstanding questions concerning the Ministerial decision record unresolved indefinitely.

11. Reasons and decision record now requested

Before determining whether recourse to the Supreme Court is necessary or appropriate, the Trustee respectfully requests that the Minister or Department now provide the following:

11.1 Statement of reasons

Please confirm whether a written statement of reasons was prepared or adopted in respect of the Minister's decision of 15 May 2026.

If so, please provide it.

If no separate statement of reasons was prepared, the Trustee requests that the Minister furnish a written statement identifying the reasons for the decision, including, to the extent forming part of those reasons:

- the material considerations upon which the decision turned;
- the material findings or factual premises relied upon; and
- the principal documentary material upon which those conclusions were based.

This request is made irrespective of the Trustee's reserved position concerning section 8 of the Administrative Law Act 1978.

11.2 Ministerial decision brief

Please identify any:

- Ministerial Decision Brief;
- Ministerial Brief;
- decision brief;
- briefing note;
- departmental assessment;
- recommendation;
- submission to the Minister; or
- equivalent decision document

prepared or placed before the Minister for the purpose of determining the amendment.

Please provide the relevant document identifier, reference or brief number where one exists.

11.3 Material actually before the Minister

Please identify the documents and material accompanying, incorporated into, or otherwise forming part of the decision package placed before the Minister.

This request includes any:

- DTP assessment;
- assessment of submissions or objections;
- internal planning analysis;
- legal or statutory analysis;
- technical assessment;
- recommendation;
- proponent response;
- referral authority material; or
- other material relied upon in making the decision.

The Trustee does not ask the Department to recreate a record that did not exist.

It asks that the contemporaneous record actually used in the decision-making process be identified.

11.4 Trustee's 25 February 2026 submission

Please confirm whether the Trustee's formal submission dated 25 February 2026 was:

- 1.** provided to the Minister;
- 2.** summarised in a Ministerial or Departmental brief;
- 3.** assessed by DTP for the purposes of the decision; and/or
- 4.** otherwise taken into account in determining the amendment.

If it was addressed in a brief or assessment, please identify where that consideration is recorded.

11.5 Subsequent pre-decision material

Please similarly identify how the Trustee's material provided to DTP and/or the Minister after 25 February and before the decision of 15 May 2026 was treated within the decision-making process.

The Trustee does not suggest that every item was necessarily required to be individually discussed.

The request is directed to identifying the actual administrative pathway by which the material was considered, summarised, referred or otherwise dealt with.

11.6 Differences between exhibited and final instrument

Please identify the administrative and decision-making basis for the material matters previously raised in the Trustee's 18 May 2026 Notice concerning the relationship between the publicly exhibited amendment material and the final permit instrument, including:

- the insertion and intended operation of Condition 27A;
- its relationship with the existing Noise Management Plan framework;
- the Responsible Authority wording; and
- the identified meteorological-monitoring wording and associated differences.

Again, the Trustee does not assert merely from the existence of differences that the amendment was invalid.

It requests the contemporaneous explanation and record by which those differences arose and were considered.

11.7 Condition 23 and earlier Ministerial reliance

Please provide the substantive response previously sought on 10 August 2026 concerning:

- how the Minister or Department was satisfied that the relevant requirements of Condition 23(a) had been demonstrated;
- what documentary material formed the basis of that satisfaction or reliance; and
- whether any instrument, approval, determination, technical advice or other documentary basis was relied upon as permitting departures from otherwise applicable locations, definitions or methodology under NZS 6808:2010 or the endorsed Noise Compliance Testing Plan.

This request remains directed to the administrative and documentary basis of the Ministerial and Departmental position, not to requiring the Minister to determine a private acoustic dispute.

11.8 Documents said not to be available

If any document requested above:

- was not created;
- was not before the Minister;
- no longer exists;
- cannot be located; or
- is withheld from production,

the Trustee requests that this be stated expressly.

Where a document exists but is withheld, the Trustee requests identification of the document sufficient to understand its character and date, together with the legal basis relied upon for withholding it, subject to any lawful restriction upon providing such information.

That will enable the Trustee to distinguish between non-existence, non-location and lawful non-disclosure, rather than leaving those materially different possibilities unresolved.

12. Opportunity to avoid unnecessary proceedings

The Trustee has consistently sought to resolve the outstanding administrative questions without unnecessarily invoking court processes.

Separately, it has pursued practical mitigation and afforded LLWF opportunities to consider commercial resolution.

Those processes have been kept distinct.

Neither has presently resolved the circumstances giving rise to this Notice.

Before determining whether an application to the Supreme Court is necessary or appropriate, the Trustee therefore considers it reasonable to afford the Minister one further opportunity to:

- provide the reasons for the decision of 15 May 2026;
- identify the contemporaneous Ministerial decision record; and
- substantively address the administrative matters that have remained unanswered since May 2026.

This is not a demand that the Minister reconsider, revoke or alter the amended Permit.

The Trustee does not through this Notice ask the Minister to determine technical noise compliance, determine a private dispute between the Trustee and LLWF, procure commercial resolution or predetermine any question of breach or liability.

The immediate question is whether the basis and contemporaneous record of the Minister's decision can now be sufficiently identified and explained without recourse to the Court.

13. Response requested having regard to procedural urgency

The Trustee recognises that an appropriate administrative response must be accurate and properly considered.

At the same time, the matters identified above have not arisen for the first time through this Notice.

They follow correspondence extending from immediately after the determination in May 2026 through to the direct Ministerial correspondence in August 2026.

In those circumstances, the Trustee does not consider further indefinite delay appropriate, particularly given its present consideration of available judicial-review remedies.

Accordingly, the Trustee respectfully requests:

(a) Acknowledgment

Written acknowledgment of receipt of this Notice within two (2) business days, being no later than close of business **Friday, 11 September 2026**.

(b) Substantive response

A substantive response to the matters identified in this Notice within seven (7) days, being no later than close of business **Wednesday, 16 September 2026**.

If it is not reasonably practicable to provide the complete response within that period, the Trustee requests that the Minister or Department, by 16 September 2026:

1. provide every substantive answer and item of decision-record information then available;
2. identify each remaining matter that genuinely requires additional time;
3. explain briefly why that additional time is required; and
4. provide a definite date by which the balance of the response will be supplied.

These periods are not imposed for the purpose of manufacturing procedural default or predetermining any legal consequence from non-response.

They are requested because:

- the decision was made on 15 May 2026;
- the Trustee sought clarification three days later;
- repeated opportunities for response have subsequently been afforded;
- substantive reasons and administrative reconciliation remain outstanding; and
- the Trustee must now determine, without unnecessary further delay, whether recourse to the Supreme Court is necessary or appropriate.

If acknowledgment or substantive engagement is not received within those periods, the Trustee will proceed on the basis of the documentary and administrative record then available in determining what, if any, further procedural or legal step is warranted.

That statement should not be understood as representing that proceedings will necessarily be commenced or that any particular relief will be sought.

14. Preservation of position

Nothing in this Notice constitutes a waiver, abandonment, admission or concession concerning any right, remedy, ground, contention or procedural position available to the Trustee.

For avoidance of doubt, the Trustee expressly preserves its position concerning:

- the legal character and effect of its pre-decision correspondence;
- the legal character and effect of the Notice issued on 18 May 2026;

- the application, if any, of section 8 of the Administrative Law Act 1978 (Vic);
- whether the Trustee is a "person affected" for relevant statutory or common-law purposes;
- whether the decision-maker falls within the relevant statutory framework for the purposes of any relief ultimately considered;
- the adequacy of any statement of reasons already existing or subsequently provided;
- the identity and contents of the contemporaneous Ministerial decision record;
- the legal significance, if any, of material placed before DTP and/or the Minister before the decision;
- the availability of judicial review;
- any application for extension of time under rule 56.02 of the Supreme Court (General Civil Procedure) Rules 2025 (Vic);
- any circumstances capable of being relied upon in support of an extension application;
- any substantive ground of review which may become apparent upon identification or production of the Ministerial decision record; and
- every other right or remedy available according to law.

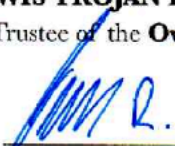
Nothing in this Notice should be construed as limiting the Trustee to the matters presently identified.

The Trustee remains willing to receive and properly consider a substantive administrative response before determining whether recourse to the Court is necessary.

Issued by:

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)

as Trustee of the **Owen Robert Inter Vivos Trust**

By:  _____

Name: Owen Lewis

Title: Director

Date: 09 / 09 / 2026

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